

STATE OF NEW YORK

6460--B

Cal. No. 883

2025-2026 Regular Sessions

IN SENATE

March 14, 2025

Introduced by Sens. CLEARE, GALLIVAN -- read twice and ordered printed, and when printed to be committed to the Committee on Codes -- recommitted to the Committee on Codes in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- reported favorably from said committee, ordered to first report, amended on first report, ordered to a second report and ordered reprinted, retaining its place in the order of second report

AN ACT to amend the penal law, in relation to sex trafficking of a vulnerable person

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 230.34-a of the penal law, as added by chapter 189 of the laws of 2018, is amended to read as follows:

§ 230.34-a Sex trafficking of a child or vulnerable person.

1. A person is guilty of sex trafficking of a child when ~~[he or she]~~ such person, being twenty-one years old or more, intentionally advances or profits from prostitution of another person and such person is a child less than eighteen years old. Knowledge by the defendant of the age of such child is not an element of this offense and it is not a defense to a prosecution therefor that the defendant did not know the age of the child or believed such age to be eighteen or over.

2. A person is guilty of sex trafficking of a vulnerable person when he or she intentionally advances or profits from prostitution of another person and such person is a vulnerable person, as such term is defined in this section.

3. For purposes of this section:

(a) A person "advances prostitution" when, acting other than as a person in prostitution or as a patron thereof, and with intent to cause prostitution, ~~[he or she]~~ such person directly engages in conduct that facilitates an act or enterprise of prostitution.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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(b) A person "profits from prostitution" when, acting other than as a person in prostitution receiving compensation for personally rendered prostitution services, and with intent to facilitate prostitution, [~~he or she~~] such person accepts or receives money or other property pursuant to an agreement or understanding with any person whereby [~~he or she~~] such person participates in the proceeds of prostitution activity.

(c) A person is a "vulnerable person" when such person is mentally disabled, mentally incapacitated, or physically helpless, as such terms are defined in section 130.00 of this part.

Sex trafficking of a child or vulnerable person is a class B felony.

§ 2. The penal law is amended by adding a new section 230.34-b to read as follows:

§ 230.34-b Predatory sex trafficking.

A person is guilty of predatory sex trafficking when, being eighteen years old or more, such person commits the crime of sex trafficking as defined in section 230.34 of this article or the crime of sex trafficking of a child or vulnerable person as defined in section 230.34-a of this article, and has a previous conviction of either such crime.

Predatory sex trafficking is a class A-II felony.

§ 3. This act shall take effect on the ninetieth day after it shall have become a law.